

03-NEW-TRIAL SOURCE ARCHIVE (MARKDOWN LISTINGS)

Case No. CGC-25-631801

801-APPEAL/03-NEW-TRIAL/source/*.md

01-NOTICE-OF-INTENTION-NEW-TRIAL

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title: "Notice of Intention to Move for New Trial"
case: CGC-25-631801
authority: "Code Civ. Proc. 657, 659"
deadline_rule: "Within fifteen (15) days after service of notice of entry of judgment / order, or earlier
    statutory limit per CCP 659(a)"
filing_date_target: TBD
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NOTICE OF INTENTION TO MOVE FOR NEW TRIAL

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<!-- BLOCK 1: NOTICE OF INTENTION (separate filing per CCP 659)
    Must be served and filed BEFORE the memorandum of points and authorities.
    Must specify the statutory grounds and whether the motion is on affidavits or
    the minutes of the court (or both).
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TO THE COURT, THE CLERK, AND ALL PARTIES AND COUNSEL OF RECORD:

****PLEASE TAKE NOTICE**** that Plaintiff Franciscus Dylan Rosario hereby gives notice of intention to move for a new trial of the matter resolved by the Court's May 12, 2026 order granting defendants' special motion to strike the First Amended Complaint (see [10210043.pdf](../../10210043.pdf) lines 132-135), pursuant to ****Code of Civil Procedure sections 657 and 659****.

STATUTORY GROUNDS

The motion is made on the following grounds, ****specified by Code of Civil Procedure section 657****:

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- **657(1)** -- Irregularity in the proceedings of the court, jury, or adverse party, or any order of the
    court or abuse of discretion by which the party was prevented from having a fair trial.
- **657(4)** -- Newly discovered evidence, material for the party making the application, which the party
    could not, with reasonable diligence, have discovered and produced at trial.
- **657(7)** -- Error in law, occurring at the trial and excepted to by the party making the application.

<!-- Strategic note (per plan): grounds (1), (4), and (7) are the targeted CCP 657 grounds.
    Grounds (2), (3), (5), (6) intentionally NOT pled. -->

## BASIS FOR THE MOTION (CCP 659(a))

The motion will be made upon affidavits and upon the minutes of the court, including:

- The May 12, 2026 minute order ([10210043.pdf](../../10210043.pdf));
- The hearing record before Department 301;
- The Memorandum of Points and Authorities, Declaration of Franciscus Dylan Rosario, and any counter-
    affidavits filed concurrently or in response.

<!-- TODO: confirm timing under CCP 659(a)(1) (before entry of judgment) vs (a)(2) (15 days after notice of
    entry) and select the controlling deadline. -->

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Cross-references:

- Source order: [10210043.pdf](../../10210043.pdf)
- Prong-one (lines 38-78); prong-two (81-117); privilege (118-131); disposition (132-135); proposed-order
    directive (143-144)
- Minutes parse: [COURT-OFFICIAL/CGC-25-631801/minutes/10210043-PARSED.md](../../COURT-OFFICIAL/CGC
    -25-631801/minutes/10210043-PARSED.md)

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02-MEMORANDUM

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title: "Memorandum of Points and Authorities ISO Motion for New Trial"

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case: CGC-25-631801
authority: "Code Civ. Proc. 657(1), (4), (7); CRC 3.1113"
deadline_rule: "Filed and served within statutory windows under CCP 659a"
filing_date_target: TBD
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# MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION FOR NEW TRIAL

<!-- BLOCK 2: MEMORANDUM
      Keyed to CCP 657(1), (4), (7) per strategic note.
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## I. INTRODUCTION

<!-- TODO: 1-page summary of why a new trial is required notwithstanding the anti-SLAPP procedural posture.
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## II. STATEMENT OF FACTS AND PROCEDURAL HISTORY

<!-- TODO: cite minute order at 10210043.pdf lines 38-135. -->

## III. LEGAL STANDARD

<!-- TODO: CCP 657 framework; standard of review on motion for new trial. -->

## IV. GROUND ONE -- CCP 657(1): IRREGULARITY IN THE PROCEEDINGS / ABUSE OF DISCRETION

<!-- TODO: argument tying to:
      - Court's exclusion of "various supplemental opposition briefs" filed without authorization
        (see PARSED.md "Excluded" entry)
      - Whether plaintiff was "prevented from having a fair trial" by procedural rulings
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## V. GROUND FOUR -- CCP 657(4): NEWLY DISCOVERED EVIDENCE

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<!-- TODO: identify evidence not reasonably discoverable before May 12, 2026 hearing;
      attach Declaration of Rosario establishing diligence. -->

## VI. GROUND SEVEN -- CCP 657(7): ERROR IN LAW

<!-- TODO: error-in-law catalogue tied to the ruling:
      - Prong-one analysis      (10210043.pdf lines 38-78)
      - Prong-two analysis      (10210043.pdf lines 81-117) -- "really a non-cognizable claim based on
      intrinsic fraud"
      - Privilege / 47(b)       (10210043.pdf lines 118-131)
      - Disposition / scope     (10210043.pdf lines 132-135)
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## VII. PREJUDICE

<!-- TODO: but-for analysis under People v. Watson reasonable-probability standard
      (or applicable civil prejudice standard for the relevant ground). -->

## VIII. CONCLUSION AND RELIEF REQUESTED

<!-- TODO: vacate May 12, 2026 order; new trial on FAC. -->

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**Cross-references:**

- Source order: [10210043.pdf](../../10210043.pdf) (lines 38-135 substantive; 143-144 proposed-order
  directive)
- Companion notice of intention: [01-NOTICE-OF-INTENTION-NEW-TRIAL.md](01-NOTICE-OF-INTENTION-NEW-TRIAL.md)

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03-DECLARATION

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title: "Declaration of Franciscus Dylan Rosario ISO Motion for New Trial"
case: CGC-25-631801

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****Cross-references:****

- Source order: [10210043.pdf](../../10210043.pdf) (prong-one 38-78; prong-two 81-117; privilege 118-131; disposition 132-135)

04-COUNTER-AFFIDAVIT-PLACEHOLDER

title: "Counter-Affidavit Placeholder (Reserved for Defense Filings under CCP 659a)"

case: CGC-25-631801

authority: "Code Civ. Proc. 659a"

deadline_rule: "Defense response window per CCP 659a; reply window for movant"

filing_date_target: TBD

COUNTER-AFFIDAVIT PLACEHOLDER

<!-- BLOCK 4: COUNTER-AFFIDAVIT PLACEHOLDER

This file is a slot only. CCP 659a permits opposing counter-affidavits and a reply in support of the motion. This placeholder reserves the location and numbering. Plaintiff will respond here once defense files its counter-affidavit.

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****Status:**** **PLACEHOLDER -- not yet drafted.**

****Trigger:**** Defense filing of counter-affidavit(s) under CCP 659a.

****When to draft:**** Promptly after service of the defense counter-affidavit, within the CCP 659a / CRC reply window applicable to new-trial motions.

****Contents to be drafted:****

- Reply declaration of Franciscus Dylan Rosario responding to specific factual assertions in the counter-affidavit.
- Evidentiary objections under Evid. Code 702, 800-805 to any speculative or unfounded statements in the counter-affidavit.
- Cross-references to the original Declaration (03-DECLARATION.md).

****Cross-references:****

- Source order: [10210043.pdf](../ ../10210043.pdf)
- Companion declaration: 03-DECLARATION.md

05-PROPOSED-ORDER

title: "[Proposed] Order Granting Motion for New Trial"

case: CGC-25-631801

authority: "Code Civ. Proc. 657, 660"

deadline_rule: "Lodged with the moving papers; ruled on within statutory 60-day jurisdictional limit (CCP 660)"

filing_date_target: TBD

[PROPOSED] ORDER GRANTING MOTION FOR NEW TRIAL

<!-- BLOCK 5: PROPOSED ORDER -->

The Court, having considered Plaintiff's Notice of Intention to Move for New Trial, the supporting Memorandum of Points and Authorities, the Declaration of Franciscus Dylan Rosario, all counter-affidavits and replies, the entire record (including the May 12, 2026 minute order at [10210043.pdf](../ ../10210043.pdf)), and oral argument of the parties (if any), and good cause appearing, ****HEREBY ORDERS****:

1. Plaintiff's Motion for New Trial under Code of Civil Procedure section 657, subdivisions (1), (4), and (7) is ****GRANTED****.


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<!-- BLOCK 6: PROOF OF SERVICE
    Use shared template at 801-APPEAL/shared/PROOF-OF-SERVICE-TEMPLATE.md.
    Document title:
    "PLAINTIFF'S NOTICE OF INTENTION TO MOVE FOR NEW TRIAL; MEMORANDUM OF
    POINTS AND AUTHORITIES; DECLARATION OF FRANCISCUS DYLAN ROSARIO;
    [PROPOSED] ORDER (Code Civ. Proc. 657, 659)"
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<!-- TODO: complete from ../../shared/PROOF-OF-SERVICE-TEMPLATE.md. -->

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**Cross-references:**

- Source order: [10210043.pdf](../../10210043.pdf)
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